

JUSTICE FOR

ERNEST **GRAHAM**

&

EUGENE **ALLEN**



Eugene Allen

"I was born in Fresno, California, in 1953. I was raised with my aunt and uncle in Merced, California, because both of my parents were killed in 1957. At eighteen (18) I was arrested for two counts of fire bombing, and later sent to the California Youth Authority. Until that time, I had never been arrested. I started out in camp in January, 1972, and was later sent to Preston Youth Authority. In July of 1972 a racial disturbance occurred in which a young inmate was killed. Five months later, in December of 1972, I was convicted of first degree murder and sentenced to 7 years to life. I was sent to Vacaville for 90 days observation. On March 27, 1973, I was sent to Deuel Vocational Institution in Tracy, California to begin my life sentence. It was then during my short stay at Deuel where I begin to truly understand the American system, and all that it offered me (nothing). Once or twice a month I would find myself in the captain's office for some type of disciplinary reason. In August of that same year, Ernest Graham, arrived at Deuel and was placed in the same housing unit with me. After a stormy introduction between him and myself, we became close friends as the days and weeks went by. After being seen with Ernest on a few occasions, I became the target of constant harassment. On one of these occasions, I was pulled to the side by a correctional officer, and advised by him that it would be very wise for me to discontinue further association with Ernest if I wanted to live a long time. Naturally I ignored his warning."

Ernest Graham

"My name is Ernest Graham, I'm 25 years old. I came from a very poor family, it was seven of us all together. I mainly was raised by my mother. I spent the first 10 years of my life in Lake Providence, Louisiana, a place where racism is firmly displayed, and mass discrimination is overtly carried out. At the age of 11, we moved to the Watts area of Los Angeles, California, an area where poverty exist to the utmost extreme. I experienced many difficult days. But difficult days is a common thing for young Blacks like myself growing up in Watts. Most of my teenage years were spent in Juvenile Detention camps. I served time in these camps on two different occasions prior to my coming to prison. Going back and forth from jail is mainly where I received my Idealism. At 19, I was sent to prison on an indeterminate sentence for a minor robbery. When I initially came to prison, it was then that my idealism germinated into a broader context. From inside the walls of prison, wonderful men and brilliant books contributed greatly to my political understanding. As my eyes awakened to the actuality of the prison situation, I immediately commenced to working on trying to bring about a change in the criminal mentality of the young Blacks and to elevate their understanding to the ways of the struggle. By dedicating myself to this type of work, organizing the minds and bodies of other prisoners, I caused the administration to immediately single me out as being a troublemaker. By being labeled as such, I was sent to other Institutional Adjustment Centers. I originally started out in Soledad, after being there approximately 18 months, I was placed in O wing (solitary confinement) for reasons that are not clear to me even today. From my first experience in the adjustment center in Soledad, constant misusing and

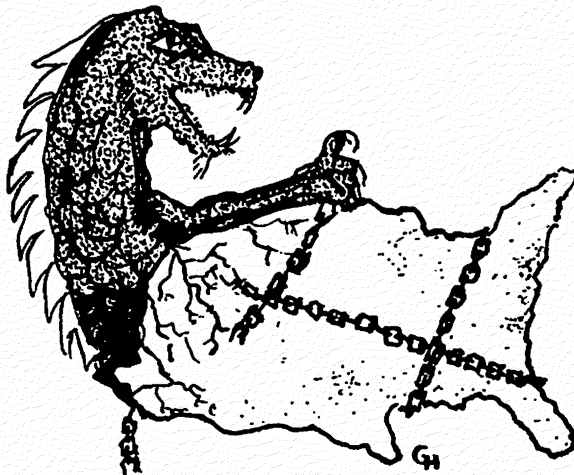
abusing by the prison administration embittered me totally. After being involved in many protests, I was then sent to the Chino Palm Hall Adjustment Center. After staying there, I was told to bring six months clean and they would assure me the privilege of returning me to a main line population in some institution. That particular institution turned out to be Deuel Vocational Institution in Tracy. On August 3, 1973 I was transferred to Deuel. I know I had to be extremely careful and watchful, due to the fact I had been singled out, because I knew the Administration was trying their best to hang me in some type of form. Shortly after being there, it became very clear that the Administration would move against me. I say this because many young Blacks had approached me informing me that the administration was trying to get them to organize some type of group and use what ever means necessary to remove people like myself from the main population, because we was gaining too much influence over other young prisoners. On Nov. 27, 1973 a prison guard was discovered dead at Deuel Vocational Institution. The Administration immediately jumped at the opportunity to victimize Eugene Allen and I.

THE DEATH PENALTY

The death penalty has always been used by the rulers of this country against Black people struggling for liberation. When African people were kidnapped from Africa and forced into enslavement in Amerika - (as prisoners of war) - the death penalty was used against all who resisted and many who didn't. Black freedom fighters such as Nat Turner, Denmark Vesey, Gabriel Prosser, Malcolm X, Martin L. King, Fred Hampton and George L. Jackson, to name a few, were all executed by the Amerikan colonial system. Black people in the Black colony, U.S.A.

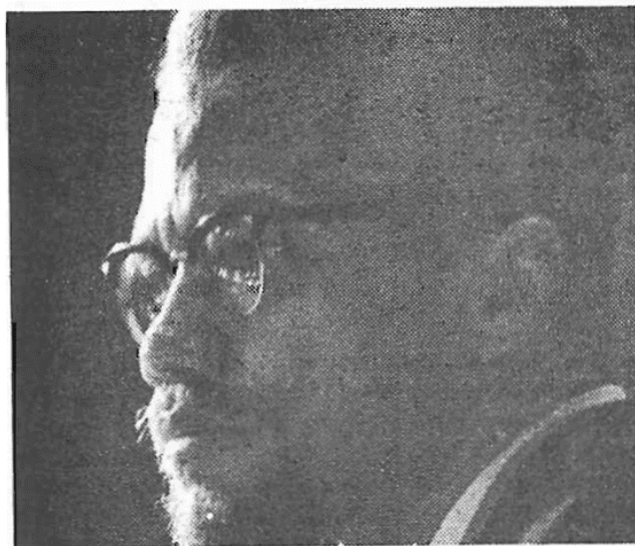
constitute a slave population. The majority of people in the various Amerikan concentration camps (San Quentin, Attica, Folsom...), are undoubtedly Black and poor people...Ernest Graham and Eugene Allen are two such people. They are on death row because of their indomitable will to struggle against the Amerikan brand of fascism - not because of the guard's execution. Proof of this can be substantiated by the fact of Attika, wherein Nelson Rockefeller murdered 9 guards on Sept. 13, 1971; clearly demonstrating that the Amerikan repressive tool does not care about any form of life, human or otherwise...

The death penalty is a tool of oppression - an instrument of state power. There are no rich people on death row in any state. The only people sentenced to death are Black and poor, because the laws are designed to protect the economic interests of the rich upper classes. On the other hand, people like Graham and Allen are sought out and murdered by the state as a method of protecting such criminals as Rockefeller and Nixon - of Watergate fame.



...revolutionary ideas do not fall
from the skies, but are born
from social injustice.

By Any Means



Necessary ***

GOVERNMENT CONSPIRACY AGAINST GRAHAM AND ALLEN

The case against Graham and Allen is not an isolated one. In the 1950's the Counter Intelligence Program (Cointelpro), one of the many of the government's conspiracies against the people worldwide, was unleashed by the government (the FBI and the Justice Dept.), in close cooperation with the judicial system, the state-local police departments, and prison administrators and guards. Its aim as stated in an FBI directive was to "destroy, prevent and neutralize the rise of a Black Messiah."

All over the country, Black people struggling for liberation were forced to flee the country, jailed for life, shot down in

jails, homes, and murdered in cold blood on the streets.

Assata Shakur and Sundiata Acoli were convicted on trumped up charges in New Jersey after Sister Shakur had been acquitted of false charges in 4 previous trials. The N.J. state troopers wounded Assata Shakur and Sundiata Acoli and murdered Zayd Shakur, yet the government has accused and falsely convicted Sister Shakur and Bro. Acoli of Zayd Shakur's murder.

Khatari (Jeffrey Gaulden) has spent years behind bars on trumped charges. One of the charges manufactured by the government to hold him captive is an alleged assault on a guard with a knife - after Bro. Khatari had been thoroughly searched, handcuffed and chained to the waist.

Elmer Geronimo Pratt is serving a life sentence on false charges trumped up after he was acquitted in the SWAT attack on the L.A. Black Panther Party office. 500 SWAT terrorists, armed to the teeth, attacked the office for 8 hours to try to murder Geronimo and the other BPP members inside as they had murdered Fred Hampton and Mark Clark while Bro. Hampton lay asleep in his bed, drugged by an FBI informer who had given the FBI a blueprint of his apartment. Police, a year later, murdered Geronimo's wife and comrade, Saundra "Red" Pratt and their 9 month old unborn baby.

Malcolm X, Dr. Martin L. King, Jr., Fred Hampton, George Jackson, Geronimo Pratt, Khatari Assata Shakur, and millions of Sisters and Brothers, are all targets of this genocidal conspiracy by the government to try to destroy the Black Liberation Movement in particular and the revolutionary movement in general.

THE TRIAL

On November 27, 1973 a guard was found dead and Brothers Graham and Allen were immediately picked up and brutalized. The following 2½ years the two men spent in lock-up, while going to trial and waiting for the second trial. They were kept separated most of the time, and were not allowed to visit or do any legal work together.

Brother Graham has written: "After being charged of taking the life of the prison guard, the threats on my life intensified. Many guards assured me that if they were not successful in sending me to the gas chamber thru court procedures, they then would have to go back to their old traditional ways of eliminating young Blacks, like Eugene Allen and myself."

The DA in Stockton, California, demanded that the Brothers be given the death penalty if convicted, even though the alleged murder took place six weeks before the death penalty was restored in California. The judge, (James Darrah), ruled that Brothers Graham and Allen would be given the death penalty if convicted.

On Oct. 7, 1974, when the trial started and during the entire pre-trial and jury selection process which lasted 10 days, the public was not allowed to attend. Finally when family and supporters gained entrance to the trial, they were continuously harassed and subject to degrading searches. In order to enter the courtroom, they had to show a picture ID, which meant people under 16 could not enter. Those with a picture ID had to have their pictures taken, holding their ID cards under their chin, and then they were assigned a seat.

The Brothers were chained and handcuffed to the waist. Armed police were in and outside the courtroom and on top of the buildings with bullet-proof vests, .357 magnums and M-16 military rifles.

The three state witnesses agreed to testify against the Brothers, in order to win an early release from prison. Each witness had a contradictory story, and one who claimed he positively identified Graham and Allen, said on the witness stand that "all Black people look alike."

After 4 days the jury could not reach a verdict and a mis-trial was declared.

The second trial in the San Francisco Hall of Injustice, was a farce; it began with a preconceived notion of the Brothers' guilt, on the part of the state. Thus, it resulted in the death penalty for the two Brothers.



Assata Shakur.

LEGAL AND PRESENT STATUS

Brothers Graham and Allen are facing the death penalty, under California's Penal Code 4500, which states that a prisoner undergoing a life sentence who is convicted of assaulting or killing a non-prisoner is automatically subject to death. The attorneys for Graham and Allen have filed an appeal to the California State Supreme Court for a re-trial, which is based on some 15 points of blatant legal discrepancies and criminal neglect of the law by the judge and prosecution.

Presently, the two men are being held in solitary confinement (which is 23½ hours locked in a cell) at San Quentin. The way they are chained during the two visits a week they are allowed from family and friends is reminiscent of medieval torture. As if this isn't enough, they must deal with the constant petty harassment by prison authorities.

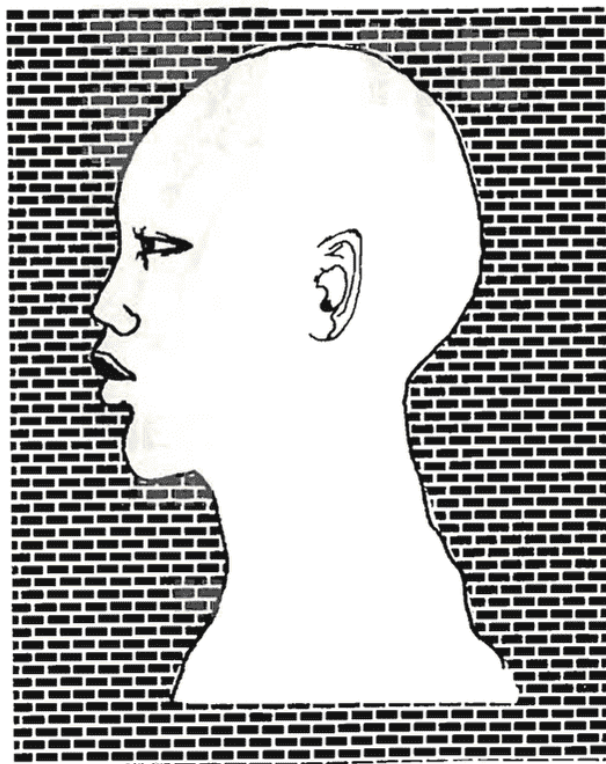
Ernest Graham and Eugene Allen are political in that they have managed to surmount the psychological chains of Black slave depression and define the fascist mechanism of Amerikan society. This constitutes a threat to those few avaricious people who own and control all of the means of production. George Jackson was able to define these mechanisms also..., and he was murdered by the state. Ernest Graham and Eugene Allen face the same fate; so does Assata Shakur, Geronimo Pratt, Khatari,,, and thousands of other Brothers and Sisters.

We need your help to bring justice to the many Sisters and Brothers behind the walls who dared to stand up to fight. Brothers Graham and Allen need your support, your time and money. This is necessary for legal work and publicity about the case.

we will win

They have been kept in prison for speaking out against the racism and oppression of Amerikkka. The forces of racism and oppression dare you, to support the Brothers in their fight!

For information or to send contributions:
Graham and Allen Defense Committee
3931 Opal Street
Oakland, CA. 94609



A Luta Continua !



break de chains!

Justice for GRAHAM and ALLEN

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